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REPORT TO COUNCIL

Date: February 22, 2024

From: Kris Croskery-Hodgins, Municipal Administrator

Re: Investigation Results – Non-Compliant Zoning Uses of Link's Beach

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BACKGROUND/OVERVIEW

A written concern regarding non-compliant zoning uses of Link's Beach and the Township unopened shore road allowance along the beach was received by the Township of Nipissing Office.

An investigation into the proper zoning uses of the location and operations taking place in the 2023/2024 winter season was conducted. The investigation was completed by Will Bateman, Fire Chief-Municipal Law Enforcement Officer-CEMC; Dan MacInnis, Operations Superintendent and myself.

RESULTS

This winter season has been abnormal and created numerous challenges to those operating Ice Fishing businesses and those enjoying the lake recreationally due to the lack of sufficient safe ice. The access across Link's Beach was more accessible for the launching of ice huts and ice bungalows.

The area is zoned as Shoreline Residential (SR) which does not permit for a public recreational use or public park.

Conversations with residents in the beach area and operators using the location to launch huts and bungalows revealed the intention to continue using the access to the lake in upcoming seasons. This operation has disrupted the residential uses in the area and created concern.

RECOMMENDATIONS:

Staff recommend the following:

1. Place barrier rocks along the property line of the shore road allowance, continuing from the current guard rail to the water's edge, spaced to allow for snowmobiles, four-wheelers and pedestrians to access the lake from the location. This should be done after April 1, 2024 to allow for those who have used the access to launch huts and bungalows the opportunity to bring them back to shore safely and as expected and if required due to conditions.

2. Amend the Zoning of Link's Beach and Wolfe Lake Beach to Open Space (OS) which permits uses of public recreational use and public park to accommodate for the public beaches placed there.

Respectfully,

Kris Croskery-Hodgins, Municipal Administrator